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POLITICS OF EUROPEAN INTEGRATION: CLASSROOM EXERCISE

The DemocracyNowEU Forum

A 50-minute paired adversarial debate on the EU's democratic deficit, legitimacy and transparency, staged before a judging panel.

Topic tags: democratic deficit · democratic legitimacy · transparency · EU institutions · civil society · accountability

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Abstract

This exercise stages a mock public forum, the “DemocracyNowEU Forum”, in which EU institutions and civil-society actors argue for or against reform of the Union’s democratic practice. Facing public criticism, the European Commission convenes the forum and invites six delegations to debate three linked charges: that the Commission is democratically deficient, that the European Parliament lacks democratic legitimacy, and that the Council is insufficiently transparent. Each theme is contested by a paired opposition: an EU institution defending the status quo against a civil-society group attacking it (Commission versus the European Citizens’ Initiative on democratic deficit; Parliament versus a group of European journalists on legitimacy; Council versus Transparency International on transparency). A panel of Judges questions the delegations, deliberates, and rules for or against reform on each theme, after which the Commission responds to the verdict. The debate rewards students for building an evidence-based case under time pressure, listening critically to an opponent, and translating abstract democratic-theory concepts into concrete institutional argument.

Learning outcomes

By the end of this exercise students will be able to:

- Define and distinguish the concepts of democratic deficit, democratic legitimacy and transparency, and explain how each applies to a specific EU institution.
- Construct and defend an evidence-based argument for or against EU institutional reform, using treaty provisions, public data and documented cases.
- Anticipate and rebut an opposing case, responding to challenge from an adjudicating panel.
- Evaluate critically the competing claims that the EU is, or is not, a democratically legitimate and transparent system of governance.

At a glance

Duration	50 minutes, plus 15–20 minutes debrief
Class size	18–35 students, arranged in seven delegations
Room setup	One room; moveable seating with a table per delegation and a top table for the Judges; projector for the agenda and definitions
Materials needed	The seven role briefs (one per delegation); a projected slide with the definitions, pairings and per-phase timings; a judging score sheet for the panel; devices for the 15-minute research phase; a visible timer
Instructor prep time	30–45 minutes (allocate delegations, print or share briefs, prepare the definitions slide and score sheet)
Student prep time	15–30 minutes optional pre-reading on the democratic-deficit debate, or none if research is done live in class

Pre-class preparation

For the instructor

- Divide the class into seven delegations: three EU institutions (European Commission, European Parliament, Council), three civil-society groups (European Citizens' Initiative, European Federation of Journalists, Transparency International EU), and one Judges panel. Aim for roughly equal size, 2–5 students each; each of the six debating delegations must be able to field two speakers (one for the opening statement, one for the rebuttal).
- Distribute the relevant role brief (Appendix B) to each delegation. Each debating brief states the delegation's assigned stance, its context, its tasks, and a starter set of arguments and evidence. The Judges receive their own brief and the score sheet.
- Prepare a single projected slide (or short deck) showing the three definitions, the three theme pairings, and the debate-phase timings, so the whole room can see the running order. A model is given in Appendix A.
- Print at least one copy of each brief so students without a device can take part, and have a visible countdown timer ready. Timing discipline is what makes this exercise work.
- Decide in advance whether students research live in the 15-minute phase or come pre-prepared. Live research is truer to the original design and levels the field; pre-reading produces sharper argument but needs briefs sent a day ahead.

For students

- Read your delegation's brief and identify your assigned stance. You are arguing the position you have been given, not your personal view.

- Agree who will deliver your two-minute opening statement and who will deliver the rebuttal. Both speakers should know the whole case, since the Judges may question either.
- Come ready to cite specific evidence: a treaty article, a turnout figure, a named case. General assertions lose to concrete ones before this panel.

Session plan

The exercise runs to 50 minutes. The framing: in response to public criticism of how the Union works, the Commission has convened the DemocracyNowEU Forum and summoned the delegations to argue, theme by theme, whether reform is needed.

Time	Phase	What happens
0:00–0:05	Introduction and definitions	Introduce the forum framing and define the three concepts (democratic deficit, legitimacy, transparency) from the slide. Confirm the three pairings and the running order.
0:05–0:20	Research and preparation	Each delegation researches and drafts its case from its brief, choosing an opening speaker and a rebuttal speaker. The Judges use this time to agree their questions and review the score sheet. Circulate between tables to help (see the facilitation hints in Appendix A).
0:20–0:26	Theme 1: Democratic deficit	Commission and European Citizens' Initiative each give a two-minute opening statement (4 min). The Judges put one or two questions to the pair (2 min).
0:26–0:32	Theme 2: Legitimacy	Parliament and European Federation of Journalists each give a two-minute opening statement (4 min), followed by Judges' questions (2 min).
0:32–0:38	Theme 3: Transparency	Council and Transparency International each give a two-minute opening statement (4 min), followed by Judges' questions (2 min).
0:38–0:41	Rebuttal preparation	Delegations return to their tables and prepare a short closing rebuttal, drawing on what the opposing side argued.
0:41–0:47	Rebuttals	Each of the six delegations gives a one-minute closing rebuttal, theme by theme (Commission/ECI, then Parliament/Journalists, then Council/Transparency International).

Time	Phase	What happens
0:47–0:50	Verdict and Commission response	The Judges deliver their ruling on each theme, for or against reform, with one line of reasoning each (2 min). The Commission gives a brief response on how it will take the verdict on board (1 min).

Adjudication rules

- The Judges rule separately on each of the three themes: reform needed, or status quo upheld. They may also recommend a specific reform if a delegation proposed a persuasive one.
- The Judges must justify each ruling in one sentence, referring to the strongest argument they heard, so the decision is reasoned rather than a popularity vote.
- The panel is instructed to weigh the evidence presented, not their own prior views (see the Judges' brief and the score sheet in Appendix A).

Debrief and reflection

Allow 15–20 minutes. The debrief is where the theory lands, so protect the time. The in-forum verdict resolves the game; these questions turn it into learning. Group the questions as follows.

On the concepts (for everyone). Surface how the abstract terms map onto institutions.

- Where exactly does the “democratic deficit” argument bite hardest: the Commission’s appointment, the Parliament’s powers, or the Council’s opacity? Did the debate change your sense of that?
- The three charges (deficit, illegitimacy, opacity) are related but distinct. Where did they overlap in the arguments you heard, and where did they pull apart?
- Was the strongest case for the EU’s democratic credentials, or the strongest case against them?

On arguing a brief (for the debating delegations). Surface the experience of advocacy under constraint.

- Did you have to argue a position you personally disagree with? How did that change how you built the case?
- Which single piece of evidence did the most work for your side, and why?
- What was the hardest point your opponents made, and how well did your rebuttal answer it?

On judging (for the Judges panel). Surface the difficulty of neutral adjudication.

- How did you decide between two well-argued sides? What tipped each ruling?
- Did any delegation win on evidence but lose on delivery, or the reverse? Should that matter?
- Would a real reform panel be able to stay as neutral as you tried to be?

On the wider question (for everyone). Connect the game back to scholarship and practice.

- Is the “democratic deficit” a real defect of the EU, a feature of any multi-level system, or partly a problem of perception and communication?

- The forum was convened and chaired by the Commission, one of the parties on trial. What does that tell you about who sets the terms of debates about EU legitimacy?
- If you could enact one reform from today's forum, which would it be, and what would it cost?

Assessment suggestions

The exercise works well ungraded, but if assessment is wanted, keep it light:

- A short individual reflection (300–500 words) answering two or three of the debrief questions, or arguing the case they would have made for the opposing side.
- A participation mark for staying in role, using evidence, and engaging with the opposing case.
- A brief delegation note (half a page) setting out the reform they proposed and the evidence behind it.
- For the Judges, a short written verdict justifying each ruling can substitute for the speaking role.

Adaptation notes

- **Scaling down.** With fewer than 18 students, keep all three themes but shrink delegations to pairs, and let the instructor or two students act as the Judges. With very small groups, run a single theme as a whole-class fishbowl.
- **Scaling up.** With more than 35, either add a second Judges panel and run two forums in parallel, or split each delegation into a “research cell” and a “floor team” so more students hold a defined job. Do not push a single delegation beyond five.
- **Difficulty.** To raise the challenge, require every claim to carry a citation, or have the Judges award points only for arguments that engage the opponent's strongest point. To lower it, extend the research phase to 20 minutes and let delegations use the starter evidence in their brief without further research.
- **Online delivery.** Put each delegation in its own breakout room for research, then bring everyone into the main room for the debate. Share the agenda and definitions on screen and have the Judges score in a shared document.
- **Different topic.** The three-theme, paired-opposition structure transfers to any contested question with an institution defending itself against a civil-society challenger: for example the EU's environmental ambition, the rule-of-law mechanism, or enlargement. Only the briefs and definitions change.

Appendix A: Instructor materials

A1. The three definitions (projected slide)

Show these at the start so every delegation works from a shared vocabulary.

- **Democratic deficit.** A situation in which institutions and their decision-making procedures lack sufficient democracy and accountability. In the EU it refers to a perceived gap between the powers held by the institutions and the ordinary citizen's ability to access, represent themselves in, or influence those institutions. The term entered EU debate in the 1990s, after the Maastricht Treaty transferred substantial powers to the Union.
- **Legitimacy.** The appropriate use of power by governing bodies. In the EU context, it means the institutions ruling with the consent of citizens and in a manner citizens find acceptable, drawing legitimacy from democratic, transparent and effective institutions.
- **Transparency.** The clarity and openness of political processes and policy-making, including full disclosure of information on how decisions are taken and money is spent, and citizens' access to that information. The EU has several transparency mechanisms; their adequacy is contested.

A2. Running order and pairings (projected slide)

EU institution (defends status quo)	Theme	Civil-society challenger (argues for reform)
European Commission	Democratic deficit	European Citizens' Initiative
European Parliament	Legitimacy	European Federation of Journalists
Council	Transparency	Transparency International EU

Debate-phase order: openings by theme (2 minutes per delegation), Judges' questions after each theme, then one-minute rebuttals by theme, then the verdict and the Commission's response.

A3. Facilitation hints while delegations prepare

Use these to unblock a stuck table without arguing its case for it. Each maps to the arguments in the briefs.

- *Democratic deficit.* Point the Commission towards Article 2 TEU, the EU's strong standing in the World Justice Project Rule of Law Index, and the indirect chain of accountability (elected governments nominate, the elected Parliament confirms and can censure the Commission). Point the Citizens' Initiative towards the absence of direct election of the Commission, the origin of the "democratic deficit" concept, and Eurobarometer dissatisfaction figures.
- *Legitimacy.* Point the Parliament towards direct elections every five years, its real role in the ordinary legislative procedure, and the treaty ratification chain. Point the Journalists towards low and uneven turnout (around 51% in 2024, 42% in 2014), the "second-order election" critique, and the technocracy charge.

- *Transparency*. Point the Council towards the public transparency register, published legislative records and open votes on final legislative acts. Point Transparency International towards the opacity of trilogues and Council working-party negotiations, and documented integrity scandals.

A4. Judges' score sheet (facilitator)

Give this to the Judges panel. It structures their questions and their verdict. Score each delegation 1–5 on each row; the ruling need not follow the totals mechanically, but the totals should inform it.

Criterion	Commission	ECI	Parliament	Journalists	Council	Transparency Int'l
Clarity of the core argument						
Quality and specificity of evidence						
Strength of rebuttal (engaged the opponent)						
Realism and value of any reform proposed						
Delivery and use of time						

For each theme, record: **Ruling** (reform / status quo upheld) and **one-sentence reason**.

A5. Further reading

- Follesdal, A. and Hix, S. (2006) 'Why There is a Democratic Deficit in the EU: A Response to Majone and Moravcsik', *Journal of Common Market Studies*, 44(3), pp. 533–562. The reference statement of the case that the EU has a genuine democratic deficit.
- Moravcsik, A. (2002) 'In Defence of the "Democratic Deficit": Reassessing Legitimacy in the European Union', *Journal of Common Market Studies*, 40(4), pp. 603–624. The reference statement of the sceptical, "no deficit" view.
- Article 2, Treaty on European Union (consolidated version). The Union's founding values. Available at eur-lex.europa.eu.
- European Parliament (2023) *Study on the democratic deficit*, IPOL_STU(2023)733742. Available at europarl.europa.eu/RegData.
- Laeken Declaration on the Future of the European Union (2001). On the legitimacy and transparency agenda. Available at cvce.eu.

- EUR-Lex glossary entries on “democratic deficit” and “transparency (access to documents)”, eur-lex.europa.eu.
- Comparative data referenced in the briefs: Eurobarometer (europa.eu/eurobarometer), European Parliament election turnout (statista.com), and the World Justice Project Rule of Law Index (worldjusticeproject.org). Instructors should source current figures directly, as these update.

Appendix B: Student handouts and role briefs

Each delegation receives one brief. The three EU institutions defend the status quo; the three civil-society groups argue for reform; the Judges adjudicate. Each brief states the stance, gives context, lists the tasks, and supplies starter arguments and evidence. Delegations should research further and are not limited to the material below. Stances are assigned for the exercise and need not reflect any delegation's real position.

European Commission

Your stance: the European Commission is *not* democratically deficient.

Context. Facing public criticism, the Commission has launched an inquiry into the state of democracy in the EU and convened this forum. Although the Commission is not directly elected, it performs an essential executive role. Focusing on how the Commission is appointed and how it works today, build the case that it is democratically accountable. You may propose modest reforms, but the Judges must approve them.

Your tasks.

1. Research and build an argument for your stance, including any reform you wish to propose.
2. Choose two speakers: one for the two-minute opening statement, one for the one-minute rebuttal.
3. Make your case to the Judges and answer their questions.
4. The Judges will rule for or against reform on your theme.

Starter arguments and evidence.

- **Indirect but real accountability.** The Commission is nominated by democratically elected national governments in the European Council, and the President and the College must be approved by the directly elected European Parliament, which can also censure and remove the Commission. This is a chain of accountability comparable to how executives are formed in many parliamentary democracies.
- **A values-based Union.** The EU is founded on democratic values. Article 2 TEU states that the Union “is founded on the values of respect for human dignity, freedom, democracy, equality, the rule of law and respect for human rights”. The Commission is the guardian of these treaties.
- **Strong democratic performance.** EU membership correlates with high rule-of-law standards: in the World Justice Project Rule of Law Index, most of the global top ten are EU member states. The Commission’s own agenda is publicly stated: its political guidelines set out “a vision of a stronger Europe that ... defends democracy” and “delivers social fairness”.
- **Openness by design.** The Commission consults widely (public consultations, impact assessments, the Citizens’ Initiative mechanism) and publishes its work programme, giving citizens structured routes to influence policy.
- **Possible reform to offer.** Stronger citizen-participation tools, or a clearer link between the European elections and the choice of Commission President (the lead-candidate idea), while defending the core structure as sound.

European Citizens' Initiative

Your stance: the European Commission is democratically deficient.

Context. Backed by more than a million citizens across several member states (the threshold to launch an initiative), you appear before the forum to argue that the Commission is democratically deficient. Focus on how the Commission is appointed and how it works, and build the case for reform. The Judges must approve any reform you propose.

Your tasks.

1. Research and build an argument for your stance, including any reform you wish to propose.
2. Choose two speakers: one for the two-minute opening statement, one for the one-minute rebuttal.
3. Make your case to the Judges and answer their questions.
4. The Judges will rule for or against reform on your theme.

Starter arguments and evidence.

- **No direct mandate.** Citizens never elect the Commission. Its members are chosen by governments and confirmed by the Parliament, leaving voters unable to hold the EU's executive directly to account or to vote it out at the ballot box.
- **A long-recognised defect.** The very term "democratic deficit" was coined to describe this gap (attributed to David Marquand in 1979) and has remained a central critique of EU governance ever since, sharpening as the Union gained powers after Maastricht.
- **Citizens feel the distance.** According to the Spring 2024 Eurobarometer, close to 40% of EU citizens are not satisfied with the way democracy works in the EU: a large minority who do not feel represented.
- **Weak citizen instruments.** The European Citizens' Initiative itself, though welcome, is largely non-binding: even a successful initiative only invites the Commission to consider action, which underlines how little direct power citizens hold.
- **Reform to demand.** Give citizens a genuine say in choosing the Commission (a binding link between the European elections and the Commission President), and give the Citizens' Initiative real legislative traction rather than a purely advisory role.

European Parliament

Your stance: the European Parliament is democratically legitimate.

Context. Facing public criticism, the Commission has launched an inquiry into EU democracy. As the directly elected chamber, you argue that the EU, while imperfect, is fundamentally democratic.

Emphasise the Parliament's democratic features and build the case for its legitimacy. Any reform you propose must be approved by the Judges.

Your tasks.

1. Research and build an argument for your stance, including any reform you wish to propose.
2. Choose two speakers: one for the two-minute opening statement, one for the one-minute rebuttal.
3. Make your case to the Judges and answer their questions.
4. The Judges will rule for or against reform on your theme.

Starter arguments and evidence.

- **Direct election.** EU citizens directly elect the Parliament every five years. It is the only directly elected transnational legislature in the world, and it speaks for voters across all member states.
- **Real legislative power.** The Parliament is a genuine co-legislator: under the ordinary legislative procedure it amends and can block most EU laws on an equal footing with the Council, and it approves the budget. Its powers have grown with every treaty.
- **Consent through ratification.** Member states transferred competences to the EU by ratifying the treaties, each through its own democratic procedure, sometimes by referendum. The Parliament's authority rests on that layered consent.
- **Scrutiny and accountability.** The Parliament holds the executive to account: it confirms and can censure the Commission, questions commissioners, and runs committees of inquiry, giving citizens' representatives real oversight.
- **Reform to offer.** Grant the Parliament a formal right of legislative initiative, or strengthen turnout and cross-border lists, while defending its legitimacy as already substantial.

European Federation of Journalists

Your stance: the European Parliament is *not* democratically legitimate.

Context. You represent journalists from publications across several member states, appearing before the forum to argue that the Parliament falls short of genuine democratic legitimacy. Draw on journalistic and public evidence about how the Parliament is elected and how it works, and build the case for reform. The Judges must approve any reform you propose.

Your tasks.

1. Research and build an argument for your stance, including any reform you wish to propose.
2. Choose two speakers: one for the two-minute opening statement, one for the one-minute rebuttal.
3. Make your case to the Judges and answer their questions.
4. The Judges will rule for or against reform on your theme.

Starter arguments and evidence.

- **Weak and uneven turnout.** Legitimacy rests on participation, yet turnout in the 2024 European election was only just over half the electorate (around 51%), and as recently as 2014 it was about 42% (Statista). A chamber that most citizens do not vote for has a thin mandate.
- **Second-order elections.** European elections are widely treated as “second-order” contests, fought on national issues and used to punish or reward national governments rather than to choose a European direction, weakening the link between votes and EU policy.
- **The technocracy charge.** The EU is persistently criticised as remote and technocratic. Even a former Commission President conceded the problem, urging in 2013 that “we cannot let people think that Europe is technocratic or bureaucratic”. If citizens cannot see how their vote changes outcomes, legitimacy suffers.
- **No initiative, limited visibility.** The Parliament cannot itself initiate legislation, and its work is poorly covered and little understood by the public, limiting the accountability that a legitimate legislature depends on.
- **Reform to demand.** Boost turnout and cross-border accountability (genuine EU-wide lists and campaigns), give the Parliament a right of initiative, and improve the transparency and media accessibility of its work.

Council

Your stance: the Council is *sufficiently* transparent.

Context. Facing public criticism, the Commission has launched an inquiry into EU democracy. Although the Council brings together national ministers rather than directly elected EU officials, it performs an essential role. Focusing on how the Council works today, build the case that it is not undemocratically opaque. Any reform you propose must be approved by the Judges.

Your tasks.

1. Research and build an argument for your stance, including any reform you wish to propose.
2. Choose two speakers: one for the two-minute opening statement, one for the one-minute rebuttal.
3. Make your case to the Judges and answer their questions.
4. The Judges will rule for or against reform on your theme.

Starter arguments and evidence.

- **Rules and registers exist.** The EU legislative process is governed by clear transparency rules. Lobbying is regulated and recorded, and a transparency register is published, so interactions between decision-makers and outside interests are documented.
- **Public legislative record.** When the Council acts as a legislator, its final votes on legislative acts are public and its legislative documents are accessible, allowing citizens and journalists to see how member states voted on the laws that bind them.
- **Democratic accountability at home.** Every minister in the Council answers to a national parliament and electorate. Confidentiality in negotiation is normal and legitimate in diplomacy: ministers need space to reach agreement among 27 states.
- **Access to documents.** EU rules give citizens a right of access to documents, with an established procedure to request them, providing a route to scrutiny beyond what is published proactively.
- **Reform to offer.** Publish more working-party and trilogue documentation proactively, or shorten the delay before negotiating records are released, while arguing that the core framework is already sound.

Transparency International EU

Your stance: the Council is *not* sufficiently transparent.

Context. You represent Transparency International EU, an NGO dedicated to preventing corruption and promoting openness in the EU institutions. You appear before the forum to show that the Council is insufficiently transparent and to argue for change. Focus on how the Council works today and build the case for reform. The Judges must approve any reform you propose.

Your tasks.

1. Research and build an argument for your stance, including any reform you wish to propose.
2. Choose two speakers: one for the two-minute opening statement, one for the one-minute rebuttal.
3. Make your case to the Judges and answer their questions.
4. The Judges will rule for or against reform on your theme.

Starter arguments and evidence.

- **Opaque negotiation.** Much of the real bargaining happens out of sight. Trilogues, the informal negotiations between the Council, Parliament and Commission, are conducted behind closed doors, so citizens cannot see how the laws that govern them were actually shaped.
- **Hidden national positions.** In Council working parties and committees, member states' positions during negotiation are frequently withheld. Voters cannot tell what their own government argued for, which breaks the chain of national accountability the Council relies on for its defence.
- **Integrity failures.** Documented scandals have exposed weaknesses in EU institutional transparency and integrity (the "Qatargate" affair being the most prominent), showing that existing safeguards are not enough on their own.
- **Access in theory, not practice.** The right to request documents is real but slow and often met with redactions or refusals, so proactive publication, not a burdensome request process, is what genuine transparency requires.
- **Reform to demand.** Publish trilogue documents and member states' negotiating positions in a timely way, strengthen and enforce the lobbying and integrity rules, and shift the default from confidentiality to proactive disclosure.

Judges

Your role. You hear the arguments from all six delegations and rule, theme by theme, for or against reform of the EU.

Context. In response to public criticism, the Commission has convened this forum, and the delegations appear before you to argue for or against reform. The three EU institutions (Commission, Parliament, Council) defend the status quo; the three civil-society groups (European Citizens' Initiative, European Federation of Journalists, Transparency International EU) argue for change. Each delegation has its own interests and biases. Your task is to reach reasoned rulings that weigh the arguments fairly.

Your tasks.

1. Listen to the opening statements from all six delegations, theme by theme.
2. Put one or two probing questions to each pair after their statements. Do not hesitate to challenge weak claims or ask for evidence.
3. Hear the closing rebuttals.
4. Deliberate, then deliver a ruling on each of the three themes (reform, or status quo upheld), with a one-sentence reason for each, referring to the strongest argument you heard.

Guidance.

- Stay as neutral as you can. Judge the arguments actually made and the evidence actually cited, not your own prior views on the EU.
- Use the score sheet supplied by the facilitator (Appendix A4) to structure your questions and your decision. Reward specific evidence and genuine engagement with the opponent's case over confident assertion.
- You may recommend a specific reform if a delegation proposed a persuasive one; you are not limited to a simple yes or no.
- Keep your final verdict brief and clear: the aim is a reasoned resolution, not a lecture.